

		jurisdiction on claims related to its activities in California under a specific jurisdiction analysis. The inquiry focuses on the relationship between the defendant, the forum, and the litigation. (<i>Walden v. Fiore</i> (2014) 571 US 277, 283-284.) For the state to exercise jurisdiction over a defendant consistent with due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (<i>Id.</i> at p. 284; <i>Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County</i> (2017) 582 US 255, 262-268.) Such “specific” personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff’s cause of action “arises out of” or is “related to” the defendant’s contacts with the forum state; and (3) reasonableness—the forum’s exercise of personal jurisdiction in the particular case comports with “fair play and substantial justice.” (<i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 477-478; <i>Vons Cos., Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) Plaintiff does not dispute that the defendant has resided in Arizona since August 2021. (<i>Fenton v. Bd. of Directors</i> (1984) 156 Cal.App.3d 1107, 1116 - “the test for determining a person’s domicile is physical presence plus an intention to make that place his permanent home.”) There is no evidence that Trevino has had any contact with California since August 2021 which related to the cats. There is no evidence the cats have resided anywhere but Arizona since August 2021. The alleged wrongful conduct of failing to return the cats occurred while Trevino and the cats resided in Arizona. While plaintiff argues the Defendant’s acts were “expressly aimed at plaintiff, a resident of the forum state,” such is insufficient. (<i>Walden v. Fiore</i> (2014) 571 U.S. 277, 289–90 – “mere injury to a forum resident is not a sufficient connection to the forum.”) Accordingly, plaintiff has failed to establish facts showing either general or specific jurisdiction. The motion is therefore GRANTED and the plaintiff’s complaint against Defendant Anthony Trevino is DISMISSED, without prejudice. <i>Mr. Trevino is ordered to give notice of this ruling.</i>
2.	Murphy v. General Motors, LLC 24-1403247	(<i>The Court will hear argument on the sanctions issue</i>)
3.	Marinez v. Garden Grove Post Acute LLC 24-1441969	Defendants Garden Grove Post Acute LLC, Sun Mar Health Care, Inc., and Sun Mar Management Services’s (“Defendants” together) Motion to Compel Arbitration (“Motion”) is DENIED. Defendants have produced a copy of a valid arbitration agreement (“Agreement”) between Defendants and plaintiff Kimberly Martinez (“Plaintiff”), which requires arbitration between the parties under the Federal Arbitration Act (“FAA”). (Denning Decl., Ex. A.)

"Under both the FAA and California law, arbitration agreements are valid, irrevocable, and enforceable, except upon such grounds that exist at law or in equity for voiding any contract. [Citation.] Such challenges to the validity of arbitration agreements can be divided into two types. [Citation.] One type specifically challenges the validity of the agreement to arbitrate. The second challenges the contract as a whole, either on a ground that directly affects the entire agreement or on the ground that the illegality of one of the contract's provisions renders the whole contract invalid. (*Ibid.*)" (*Winter v. Window Fashions Pros., Inc.* (2008) 166 Cal. App. 4th 943, 947 ("Winter").) "As a matter of federal law, arbitration clauses are "separable" from the contracts in which they are embedded." [Citation.] . . . a challenge to the arbitration clause itself must be decided by the court. [Citation.] Nevertheless, a court still must consider one type of challenge to the overall contract, *i.e.*, a claim that the party resisting arbitration never actually agreed to be bound." (*Winter, supra*, 166 Cal. App. 4th at 947–48.)

"Only 'generally applicable contract defenses, such as fraud, duress, or unconscionability, may be applied to invalidate arbitration agreements without contravening § 2 of the FAA." (*Giuliano v. Inland Empire Pers., Inc.* (2007) 149 Cal. App. 4th 1276, 1285.)

"The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 ("Engalla"); *Green Tree Financial Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91-92.)

Defendants have met their initial burden of showing an arbitration provision exists between the parties covering the issues alleged in the First Amended Complaint ("FAC"), with the FAA controlling. The burden transfers to Plaintiff to prove by a preponderance of the evidence any fact necessary to its defense. (*Engalla, supra*, 15 Cal.4th at 972.)

Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021

Plaintiff argues the Agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA"). "[T]he EFAA rejects the policy of favoring enforceability of arbitration agreements and replaces it with a rule of *unenforceability*" [Emphasis in original.] (*Casey v. Superior Court* (2025) 108 Cal.App.5th 575, 585 ("Casey"); 9 U.S.C., §§ 2, 401-402.) "[W]here a plaintiff's lawsuit contains at least one claim that fits within the scope of the EFAA, "the arbitration agreement is unenforceable as to all claims asserted in the lawsuit." [Citation.] The EFAA provides that it applies to "a case" (9 U.S.C. § 402(a))—as opposed to a claim—that a plaintiff brings alleging sexual harassment, meaning that the EFAA applies to an entire case. " (*Casey, supra*, 108 Cal.App.5th at 588.)

The EFAA covers all disputes between the parties that “relate to conduct that is alleged to constitute” sexual assault and sexual harassment, regardless of the theory of liability. (9 U.S.C. § 401(3)-(4).) The statute provides in relevant part: “Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (9 U.S.C., § 402(a).)” [Emphasis added.] (Casey, *supra*, 108 Cal.App.5th at 584.)

“[T]he EFAA does not refer to a “sexual harassment claim” or “sexual harassment cause of action,” but rather a “sexual harassment dispute.” Moreover, several courts have rejected the argument that a plaintiff is barred from invoking the EFAA simply “because none of her claims are styled as ‘sexual harassment’ claims.” (Lee v. Marriott Int’l, Inc., No. 25-CV-01169-EMC, 2025 WL 2689263, at *9 (N.D. Cal. Sept. 21, 2025)(“ Lee”).) The fact the plaintiff did not assert a cause of action for sexual harassment or hostile work environment (under Title VII or FEHA) did not bar the plaintiff from relying on the EFAA. (*Ibid.*)

In a case brought under state law, such as FEHA in the present matter, the court looks to the definition of sexual harassment in the code sections the case is based upon. (See, Lee, *supra*, 2025 WL 2689263, at *1.) Under Gov’t Code § 12940(j), it is illegal to harass an individual based upon, among other things, sex, gender, and *reproductive health decision-making, which includes pregnancy, childbirth, or related medical conditions.* (Lee, *supra*, 2025 WL 2689263, at *12; Bailey v. San Francisco Dist. Attorney’s Off. (2024) 16 Cal. 5th 611.)

Plaintiff sexual harassment allegations were that upon disclosing her pregnancy was met with a ‘sour attitude’ from her supervisor upon Plaintiff announcing the pregnancy. (FAC ¶ 23.) The supervisor completely changed the way she interacted with Plaintiff, the supervisor treated Plaintiff coldly and required a note confirming the pregnancy. After Plaintiff was placed on workplace restrictions, the supervisor became upset and stated she would need to discuss the restrictions with the Director. (FAC ¶ 25.) Plaintiff’s supervisor then began to harass Plaintiff due to the pregnancy restrictions, including ignoring a request for assistance in moving a patient transfer machine which was over Plaintiff’s weight restrictions. (FAC ¶¶ 26, 103.) The supervisor then ignored and pretended not to hear Plaintiff and Plaintiff then had to find another CNA to assist Plaintiff. Plaintiff was then constructively discharged by being taken off the schedule and told there was no work for her. (FAC ¶¶ 27-28, 103.) Plaintiff’s attempts to reach out to the Director were ignored. (FAC ¶¶ 29, 103.) The one shift which was later offered to Plaintiff was in the evening and not the mid-day shift, which she had been previously working. (FAC ¶ 30.) This was allegedly due to Plaintiff’s weight restrictions. (FAC ¶¶ 30-32.) Additional attempts by Plaintiff to discuss the issues with the supervisor and Director were ignored. (FAC ¶ 33.) Plaintiff has sufficiently pled harassment based

		upon reproductive health decision-making, which includes pregnancy, childbirth, or related medical conditions. The EFAA applies to the FAC, which in turn invalidates the Agreement. As the EFAA applies to invalidate the Agreement against a single claim, it applies to invalidating the Agreement against all of Plaintiff's claim. (<i>Casey, supra</i>, 108 Cal.App.5th at 588.) The Motion is DENIED based on the EFAA. As such, the court need not address the unconscionability arguments. <i>Plaintiff's counsel to give notice.</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (<i>Southland v. Corp. v. Keating</i> (1984) 465 U.S. 1, 12.) The party claiming the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (<i>Woolfs v. Sup. Ct.</i> (Turner)(2005) 127 Cal.App.4th 197, 211-214.) Defendant produced some evidence of interstate commerce. (Arshad Decl. Ex. G; Hopkins-Donihe Decl. ¶¶ 2, 13, 16; Compl. ¶ 23.) Plaintiff neither disputes nor confirms whether the FAA applies. But whether the FAA applies is not really at issue because Defendant does not contend that any state law is preempted by the FAA. In fact, Defendant also cites to the California Arbitration Act in support of the motion. (Motion, p. 10.) The enforcement language of the FAA is almost identical to <i>Code of Civil Procedure section 1281</i>. Just like a motion to compel arbitration under the California Arbitration Act, <i>Code of Civ. Proc. § 1280 et. seq.</i>, a motion to compel arbitration under the FAA requires a finding that an agreement exists for arbitration between the parties and the agreement covers the dispute. (<i>AT&T Technologies, Inc. v. Communications Workers of America</i> (1986) 475 U.S. 643, 648-49.) State law applicable to contracts generally governs whether a valid agreement to arbitrate exists. (<i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492, fn. 9; <i>Stutler v. T.K. Contractors, Inc.</i> (6th Cir. 2006) 448 F.3d 343, 347; <i>Metters v. Ralphs Grocery Store Co.</i> (2008) 161 Cal.App.4th 696, 701 ("federal policy in favor of arbitration does not come into play . . . until a court has found the parties entered into a valid contract under state law.").)